INTELLECTUAL PROPERTY INDIA
एकस्व / PATENTS / अभिकल्प / DESIGNS| व्यापार चिन्ह / TRADE MARKS भौगलिक उपदर्शन / GEOGRAPHICAL INDICATIONS

सत्यमेव जयते
भारत सरकार
GOVERNMENT OF INDIA

भारत सरकार
व्यापार चिन्ह रजिस्ट्री
234/4, ए.जे. सी. बोस रोड, 7 वीं मंजिल,
निजाम पैलेस, दूसरी एमएसओ बिल्डिंग,
कोलकाता, पश्चिम बंगाल 700020

GOVERNMENT OF INDIA
TRADE MARKS REGISTRY
234/4, A.J.C.Bose Road, 7th Floor,
Nizam Palace, 2nd MSO Building,
Kolkata, West Bengal 700020

No: TMR/KOLKATA/EXM/2026/

From : The Registrar of Trade Marks, KOLKATA **Date: 24/01/2023**

To,
GEETA BANSAL
114, 4th floor, Hari Nagar, Ashram, New Delhi-110014.

Application No: **5521889** in Class/Classes : **11**

In the name of M/s: **MKD ENTERPRISES**

Gentlemen/Madam,

The above mentioned application has been examined under the provisions of Trade Mark Act,1999 and Trade Mark Rules, 2017 and the trade mark applied for is open to objection under the following sections :

1. The Trade Mark application is open to objection on relative grounds of refusal under Section 11 of the Act because the same/similar trade mark(s) is/are already on record of the register for the same or similar goods/services.The detail of same/similar trade marks is enclosed herewith.

The objection is raised under S 11 (1) of the Trade Marks Act, 1999, as the mark is identical with or similar to earlier marks in respect of identical or similar description of goods and because of such identity or similarity there exists a likelihood of confusion on the part of the public.

2. Other Objection/Requirement/Conditions/Restrictions.

Applicant are required to submit supporting documents for testifying the user claim from the date 09/05/2022 as required under Rule 25 (2) of Trade Marks Rules,2017

Hence, the above application is liable to be refused. Accordingly, you are requested to submit your response/submissions, if any, along-with supporting documents, with in One Month from the date of receipt of this Examination Report or you may apply for a hearing.

Please Note that if no reply is received or a request for a hearing is applied for within the above mentioned stipulated time ,the said application shall be treated to have been abandoned for lack of prosecution under Section 132 of the Trade Marks Act,1999 and there after the status of application in the computer database shall reflect the factual position

Note:The reply should be submitted online through Comprehensive eFiling services or through email at parm.tmr@nic.in. With the subject as REPLY TO EXAMINATION REPORT.

Yours faithfully,
DR. AMRENDRA KUMAR SINGH
For Registrar of Trade Marks

Search Report

GOVERNMENT OF INDIA
TRADE MARKS REGISTRY

LOCATION: KOLKATA
SECTION: EXM
REPORT: EXM007

WORD MARK SEARCH REPORT
APPLICATION NUMBER: 5521889
Class: ---
TRADEMARK: 'Odi'

USER: AMRENDRA
PAGE: 1
DATE: 9/14/2022 5:09:03 PM

APPL NO	CLASS	CONFLICTING MARK	JOURNAL No	PROPRIETOR NAME	PROPRIETOR ADDRESS	STATUS	TM IMAGE
GOODS SERVICES							
4079722	11	ODIS	1891	Odis Filtering Ltd.	Petach Tikva Israel	Protection Granted	

APPLICATION DATE: 12/11/2018

GOODS/SERVICE: Water treatment systems namely installations and apparatuses for purification of irrigation water, sewage and wastewater; water filtration systems namely installations and apparatuses for purification of irrigation water, sewage and wastewater; installations, apparatuses and machines for fertilizing water; water filters; water treatment equipment namely water filtration units; apparatuses for water supply (including drinking water); sanitary apparatuses and installations; industrial waste water purification plants; installations for the distribution of water; water purification apparatuses; water purification installations; water purification machines; water treatment apparatuses; parts, fittings and accessories for all the aforementioned goods; all included in class 11.

DR. AMRENDRA KUMAR SINGH
For REGISTRAR OF TRADE MARKS